

24STCV34286 24STCV34286

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Case Number: 24STCV34286 Hearing Date: July 21, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: July

21, 2026 TRIAL DATE: February 16, 2027

CASE: Sameen Naqvi v. Volkswagen Group of America, Inc., et al.

CASE NO.: 24STCV34286

DEFENDANTS

VOLKSWAGEN GROUP OF AMERICA, INC. AND AUDI FLETCHER JONES' MOTION FOR JUDGMENT
ON THE PLEADINGS

MOVING PARTY: Defendants

Volkswagen Group of America, Inc., et al.

RESPONDING PARTY:

Plaintiff

Sameen Naqvi

I.

BACKGROUND

Plaintiff,

Sameen Naqvi, bring this lemon law action against Defendants, Volkswagen Group of America, Inc. ("Volkswagen") and Audi Fletcher Jones ("Fletcher"), arising

from the purchase of a 2024 Audi Q4 e-tron (the "Vehicle"). On May 2, 2025, Plaintiff filed the operative First Amended Complaint ("FAC") against Defendants for (1) Violation of subdivision (d) of Civil Code Section 1793.2, (2) Violation of subdivision (b) of Civil Code Section 1793.2, (3) Violation of subdivision (a)(3) of Civil Code Section 1793.2, (4) Breach of the Implied Warranty of Merchantability, (5) Negligent Repair, and (6) Fraudulent Inducement – Concealment.

On June 8, 2026, Defendants filed this motion for judgment on the pleadings.

On July 6, 2026,
Plaintiff filed an opposition.

On July 14,
2026, Defendants filed a reply.

II. LEGAL STANDARD

"A motion for judgment on the pleadings performs the same function as a general demurrer, and hence attacks only defects disclosed on the face of the pleadings or by matters that can be judicially noticed." [Citations.] (Burnett v. Chimney Sweep (2004) 123 Cal.App.4th 1057 1064.) The court must assume the truth of all properly pleaded material facts and allegations, but not contentions or conclusions of fact or law. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318; Wise v. Pacific Gas and Elec. Co. (2005) 132 Cal.App.4th 725, 738.) "A judgment on the pleadings in favor of the defendant is appropriate when the complaint fails to allege facts sufficient to state a cause of action. (Code Civ. Proc., § 438, subd. (c)(3)(B)(ii).)" (Kapsimallis v. Allstate Ins. Co. (2002) 104 Cal.App.4th 667, 672.) "Presentation of extrinsic evidence is therefore not proper on a motion for judgment on the pleadings." [Citation.] (Cloud v. Northrop Grumman Corp. (1998) 67 Cal.App.4th 995, 999.) "The common law ground for a motion for judgment on the pleadings is identical to the statutory ground[.]" (Korchemny v. Piterman (2021) 68 Cal.App.5th 1032, 1055.) Allegations are to be liberally construed. (Code Civ. Proc., § 452.)

If the motion for judgment on the pleadings is granted, it may be granted with or without leave to amend. (Code Civ. Proc., § 438, subd. (h)(1).) "Where a demurrer is sustained or a motion for judgment on the pleadings is granted as to the original complaint, denial of leave to amend constitutes an abuse of discretion if the pleading does not show on its face

that it is incapable of amendment.” (Virginia G. v. ABC Unified School Dist. (1993) 15 Cal.App.4th 1848, 1852, italics added.)

III. DISCUSSION

Defendants

move for judgment on the pleadings of the fifth and sixth causes of action. The court addresses the challenges in turn.

A. Negligent

Repair (5th COA)

The

fifth cause of action is alleged against Fletcher only. Fletcher argues the negligent repair claim is barred by the economic loss rule. The court agrees.

To plead a claim for negligent repair, a plaintiff must allege the elements of negligence. “Ordinarily, negligence may be pleaded in general terms and the plaintiff need not specify the precise act or omission alleged to constitute the breach of duty.” (Lopez v. S. Cal. Rapid Transit Dist. (1985) 40 Cal.3d 780, 795; Crouse v. Brobeck (1998) 67 Cal.App.4th 1509, 1532 (a plaintiff need only state what occurred, and generally that the acts were negligently done, but “need not state the specific act or omission constituting negligent conduct.”).) Likewise, causation may be alleged “succinctly and generally, unless the pled facts ‘do not naturally give rise to an inference of causation...’” (Bockrath v. Aldrich Chemical Co., Inc. (1999) 21 Cal.4th 71, 78, internal citations omitted.) “In general, there is no recovery in tort for negligently inflicted ‘purely economic losses,’ meaning financial harm unaccompanied by physical or property damage.” (Sheen v. Wells Fargo Bank, N.A. (2022) 12 Cal.5th 905, 922.) “California Courts define economic loss as ‘damages for inadequate value, costs of repair and replacement of the defective product or consequent loss of profits—without any claim of personal injury or damages to other property.’” (Department of Water & Power v. ABB Power T & D Co. (C.D. Cal. 1995) 902 F.Supp. 1178, 1186, fn. 4.)

Here, Fletcher’s duty to repair arose from contract. (FAC, ¶¶ 18-20.) Plaintiff does not allege any facts to show Fletcher breached a duty that it owed independent from the warranty. The fifth cause of action is deficient.

Plaintiff argues the economic loss rule does not apply to negligent repair claims where subcomponents of a vehicle cause damage to a large component or where the component causes damages to the vehicle into which it has been incorporated. However, missing from the FAC are any factual allegations to show these exceptions to the economic loss rule apply in this case.

Accordingly, the motion for judgment on the pleadings of the fifth cause of action is GRANTED. Leave to amend is GRANTED.

B. Fraudulent

Inducement – Concealment (6th COA)

The sixth cause of action is alleged against Volkswagen. Volkswagen argues this claim is barred by the economic loss rule and fails to state facts sufficient to constitute a cause of action. The second argument is meritorious.

The elements of this fraud claim are “(1) misrepresentation (false representation, concealment, or nondisclosure); (2) knowledge of falsity (scienter); (3) intent to defraud (i.e., to induce reliance); (4) justifiable reliance; and (5) resulting damage.” (*Dhital v. Nissan North America, Inc.* (2022) 84 Cal.App.5th 828, 843-844 [review denied] (internal citations omitted).) “Suppression of a material fact is actionable when there is a duty of disclosure, which may arise from a relationship between the parties, such as a buyer-seller relationship.” (*Ibid.*) “Fraud, including concealment, must be pleaded with specificity.” (*Ibid.*; *Bigler-Engler v. Breg, Inc.* (2017) 7 Cal.App.5th 276, 310-311 (*Bigler-Engler*); CACI No. 1901.)

An essential element of intentional concealment includes the duty to disclose, which must be based upon a transaction, or a special relationship, between plaintiff and defendant. (*Bigler-Engler*, at p. 314.) “[T]o establish fraud through nondisclosure or concealment of facts, it is necessary to show the defendant ‘was under a legal duty to disclose them.’” (*OCM Principal Opportunities Fund v. CIBC World Markets Corp.* (2007) 157 Cal.App.4th 835, 845 (*OCM Principal*)).

In *Bigler-Engler*, a product liability case, the plaintiff, Engler, injured her knee and had surgery. After the surgery, the

doctor recommended use of an “ice” machine. The doctor prescribed the Polar Care 500 ice machine which was manufactured by defendant Breg, Inc (Breg). The ice machine made things worse and caused additional injuries. Engler sued Breg for intentional concealment. The jury returned a verdict in plaintiff’s favor. The Court of Appeal reversed finding that Breg did not owe Engler a duty of care. The Bigler-Engler Court described the circumstances that give rise to a duty of care as follows:

“

“There are four circumstances in which nondisclosure or concealment may constitute actionable fraud: (1) when the defendant is in a fiduciary relationship with the plaintiff; (2) when the defendant had exclusive knowledge of material facts not known to the plaintiff; (3) when the defendant actively conceals a material fact from the plaintiff; and (4) when the defendant makes partial representations but also suppresses some material facts. [Citation.] Where, as here, a fiduciary relationship does not exist between the parties, only the latter three circumstances may apply. These three circumstances, however, presuppose the existence of some other relationship between the plaintiff and defendant in which a duty to disclose can arise. [Citation.] A duty to disclose facts arises only when the parties are in a relationship that gives rise to the duty, such as seller and buyer, employer and prospective employee, doctor and patient, or parties entering into any kind of contractual arrangement.”

”

(Bigler-Engler, *supra*, at p. 311 [cleaned up].) “Such a transaction must necessarily arise from direct dealings between the plaintiff and the defendant; it cannot arise between the defendant and the public at large.” (Id. at p. 312.)

Here, Plaintiff does not point to any allegations showing or otherwise suggesting direct dealings between Volkswagen and Plaintiff. Indeed, Plaintiff appears to concede as much by arguing that a direct transactional relationship is not required to give rise to a manufacturer’s duty to disclose material facts. For this proposition, Plaintiff cites OCM Principal. However, Plaintiff misstates OCM Principal. There, the Court of Appeal stated, “Where . . . there is no fiduciary relationship, the duty to disclose generally presupposes a relationship grounded in “some sort of transaction between the

parties.” (OCM Principal, *supra*, 157 Cal.App.4th at p. 859.) This principle is consistent with *Bigler-Engler*.

Additionally,

the court finds the Court of Appeal's decision in *Bjoin v. J-M Mfg. Co. Inc.* (2025) 113 Cal.App.5th 884 supports the court's conclusion. The *Bjoin* court, citing *Rattagan*, states that a “duty to disclose requires ‘a preexisting relationship between the parties, such as ‘between seller and buyer, employer and prospective employee, doctor and patient, or parties entering into any kind of contractual agreement...it cannot arise between the defendant and the public at large.’ [Citation].” (*Bjoin*, at pp. 901–902).

Plaintiff does not allege such preexisting relationships in the Complaint.

In opposition, Plaintiff argues that *Bader v. Johnson & Johnson* (2022) 86 Cal.App.5th 1094 supports the proposition that “VW forms a transactional relationship with buyers, such as Plaintiff, through retail sales of its vehicles to consumers, and VW profits from those sales.” However, the *Bjoin* court specifically rejected the idea that “a duty to disclose relationship is created between a manufacturer and a consumer when a manufacturer advertises its products to consumers or profits from the sale of its products to consumers” because “[t]his statement is too broad and vague to constitute a standard which is applicable in other cases.” (*Bjoin v. J-M Mfg. Co. Inc.*, *supra*, 113 Cal.App.5th at pp. 902, 904.)

Further,

the *Ford Motor Warranty Cases* held that there was “certainly not such a relationship resulting from the sales contract” between *Song-Beverly* plaintiffs and manufacturers. (*Ford Motor Warranty Cases* (2025) 17 Cal.5th 1122, 1130.) Under *Ford Motor Warranty Cases*, *Song-Beverly* plaintiffs, such as Plaintiffs here, may avoid arbitration where there is no buyer/seller relationship between a *Song-Beverly* plaintiff and the manufacturer. (*Id.*, at pp. 1130-1131.)

In sum, Volkswagen establishes it had no duty to disclose any defects in the Vehicle as a matter of law because there was no direct transactional relationship between the parties.

Accordingly, the motion for judgment on the pleadings of the sixth cause of action is GRANTED. Leave to amend is

DENIED.

IV. CONCLUSION

The motion for judgment on the pleadings is Granted. Leave to amend is Granted as to the fifth cause of action only.

Plaintiff

is ordered to serve and file the Second Amended Complaint within 10 days of this order.

Defendant to give notice, unless waived.

Dated: July 21, 2026

Brock T. Hammond

Judge of the Superior Court